THE PASSPORTS ACT, 1967

ARRANGEMENT OF SECTIONS

SECTIONS

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IndiaCode

THE PASSPORTS ACT, 1967

ACT NO. 15 OF 1967

[24*th June*, 1967.]

An Act to provide for the issue of passports and travel documents, to regulate the departure from India of citizens of India and other persons and for matters incidental or ancillary thereto.

BE it enacted by Parliament in the Eighteenth Year of the Republic of India as follow:—

1. Short title and extent.—(*1*) This Act may be called the Passports Act, 1967.

(*2*) It extends to the whole of India and applies also to citizens of India who are outside India.

2. Definitions.—In this Act, unless the context otherwise requires,—

(*a*) "departure", with its grammatical variations and cognate expressions, means departure from India by water, land or air;

(*b*) "passport" means a passport issued or deemed to have been issued under this Act;

(*c*) "passport authority" means an officer or authority empowered under rules made under this Act to issue passports or travel documents and includes the Central Government;

(*d*) "prescribed" means prescribed by rules made under this Act;

(*e*) "travel document" means a travel document issued or deemed to have been issued under this Act.

3. Passport or travel document for departure from India.—No person shall depart from, or attempt to depart from India unless he holds in this behalf a valid passport or travel document.

Explanation.—For the purposes of this section,—

(*a*) "passport" includes a passport which having been issued by or under the authority of the Government of a foreign country satisfies the conditions prescribed under the Passport (Entry into India) Act, 1920 (34 of 1920), in respect of the class of passports to which it belongs;

(*b*) "travel document" includes a travel document which having been issued by or under the authority of the Government of a foreign country satisfies the conditions prescribed.

4. Classes of passports and travel documents.—(*1*) The following classes of passports may be issued under this Act, namely:—

(*a*) ordinary passport;

(*b*) Official passport;

(*c*) diplomatic passport.

(*2*) The following classes of travel documents may be issued under this Act, namely:—

(*a*) emergency certificate authorising a person to enter India;

(*b*) certificate of identity for the purpose of establishing the identity of a person;

(*c*) such other certificate or document as may be prescribed.

(*3*) The Central Government shall, in consonance with the usage and practice followed by it in this behalf, prescribe the classes of persons to whom the classes of passports and travel documents referred to respectively in sub-section (*1*) and sub-section (*2*) may be issued under this Act.

5. Applications for passports, travel documents, etc, and orders thereon.—[1][(*1*) An application for the issue of a passport under this Act for visiting such foreign country or countries (not being a named foreign country) as may be specified in the application may be made to the passport authority and shall be

1. Subs. by Act 31 of 1978, s. 2, for sub-section (*1*) (w.e.f. 18-8-1978).

accompanied by [1][such fee as may be prescribed to meet the expenses incurred on special security paper, printing, lamination and other connected miscellaneous services in issuing passports and other travel documents].

Explanation.—In this section, "named foreign country" means such foreign country as the Central Government may, by rules made under this Act, specify in this behalf.

(*1A*) An application for the issue of—

(*i*) a passport under this Act for visiting a named foreign country; or

(*ii*) a travel document under this Act, for visiting such foreign country or countries (including a named foreign country) as may be specified in the application or for an endorsement on the passport or travel document referred to in this section,

may be made to the passport authority and shall be accompanied by such fee (if any) not exceeding rupees fifty, as may be prescribed.

(*1B*) Every application under this section shall be in such form and contain such particulars as may be prescribed.]

(*2*) On receipt of an application [2][under this section], the passport authority, after making such inquiry, if any, as it may consider necessary, shall, subject to the other provisions of this Act, by order in writing,—

(*a*) issue the passport or travel document with endorsement ,or, as the case may be, make on the passport or travel document the endorsement, in respect of the foreign country or countries specified in the application; or

(*b*) issue the passport or travel document with endorsement, or, as the case may be, make on the passport or travel document the endorsement, in respect of one or more of the foreign countries specified in the application and refuse to make an endorsement in respect of the other country or countries; or

(*c*) refuse to issue the passport or travel document or, as the case may be, refuse to make on the passport or travel document any endorsement.

(*3*) Where the passport authority makes an order under clause (*b*) or clause (*c*) of sub-section (*2*) on the application of any person, it shall record in writing a brief statement of its reasons for making such order and furnish to that person on demand a copy of the same unless in any case the passport authority is of the opinion that it will not be in the interests of the sovereignty and integrity of India, the security of India, friendly relations of India with any foreign country or in the interests of the general public to furnish such copy.

6. Refusal of passports, travel documents, etc.—(*1*) Subject to the other provisions of this Act, the passport authority shall refuse to make an endorsement for visiting any foreign country under clause (*b*) or clause (*c*) of sub-section (*2*) of section 5 on any one or more of the following grounds, and on no other ground, namely:—

(*a*) that the applicant may, or is likely to, engage in such country in activities prejudicial to the sovereignty and integrity of India;

(*b*) that the presence of the applicant in such country may, or is likely to, be detrimental to the security of India;

(*c*) that the presence of the applicant in such country may, or is likely to, prejudice the friendly relations of India with that or any other country;

1. Subs. by Act 35 of 1993, s. 2, for "a fee of rupees fifty" (w.e.f. 1-7-1993).
2. Ins. by Act 31 of 1978 s. 2 (w.e.f. 18-8-1978).

(*d*) that in the opinion of the Central Government the presence of the applicant in such country is not in the public interest.

(*2*) Subject to the other provisions of this Act, the passport authority shall refuse to issue a passport or travel document for visiting any foreign country under clause (*c*) of sub-section (*2*) of section 5 on any one or more of the following grounds, and on no other ground, namely:—

(*a*) that the applicant is not a citizen of India;

(*b*) that the applicant may, or is likely to, engage outside India in activities prejudicial to the sovereignty and integrity of India;

(*c*) that the departure of the applicant from India may, or is likely to, be detrimental to the security of India;

(*d*) that the presence of the applicant outside India may, or is likely to, prejudice the friendly relations of India with any foreign country;

(*e*) that the applicant has, at any time during the period of five years immediately preceding the date of his application, been convicted by a court in India for any offence involving moral turpitude and sentenced in respect thereof to imprisonment for not less than two years;

(*f*) that proceedings in respect of an offence alleged to have been committed by the applicant are pending before a criminal court in India;

(*g*) that a warrant or summons for the appearance, or a warrant for the arrest, of the applicant has been issued by a court under any law for the time being in force or that an order prohibiting the departure from India of the applicant has been made by any such court;

(*h*) that the applicant has been repatriated and has not reimbursed the expenditure incurred in connection with such repatriation;

(*i*) that in the opinion of the Central Government the issue of a passport or travel document to the applicant will not be in the public interest.

7. Duration of passports and travel documents.—A passport or travel document shall, unless revoked earlier, continue in force for such period as may be prescribed and different periods may be prescribed for different classes of passports or travel documents or for different categories of passports or travel documents under each such class:

Provided that a passport or travel document may be issued for a shorter period than the prescribed period—

(*a*) if the person by whom it is required so desires; or

(*b*) if the passport authority, for reasons to be communicated in writing to the applicant, considers in any case that the passport or travel document should be issued for a shorter period.

[1][**8. Extension of period of Passport.**—Where a passport is issued for a shorter period than the prescribed period under section 7, such shorter period shall, unless the passport authority for reasons to be recorded in writing otherwise determines, be extendable for a further period (which together with the shorter period shall not exceed the prescribed period) and the provisions of this Act shall apply to such extension as they apply to the issue thereof.]

9. Conditions and forms of passports and travel documents.—The conditions subject to which, and the form in which, a passport or travel document shall be issued or renewed shall be such as may be prescribed:

Provided that different conditions and different forms may be prescribed for different classes of passports or travel documents or for different categories of passports or travel documents under each such class:

1. Subs. by Act 35 of 1993, s. 3, for section 8 (w.e.f. 1-7-1993).

Provided further that a passport or travel document may contain in addition to the prescribed conditions such other conditions as the passport authority may, with the previous approval of the Central Government, impose in any particular case.

10. Variation, impounding and revocation of passports and travel documents.—(*1*) The passport authority may, having regard to the provisions of sub-section (*1*) of section 6 or any notification under section 19, vary or cancel the endorsements on a passport or travel document or may, with the previous approval of the Central Government, vary or cancel the conditions (other than the prescribed conditions) subject to which a passport or travel document has been issued and may, for that purpose, require the holder of a passport or a travel document, by notice in writing, to deliver up the passport or travel document to it within such time as may be specified in the notice and the holder shall comply with such notice.

(*2*) The passport authority may, on the application of the holder of a passport or a travel document, and with the previous approval of the Central Government also vary or cancel the conditions (other than the prescribed conditions) of the passport or travel document.

(*3*) The passport authority may impound or cause to be impounded or revoke a passport or travel document,—

(*a*) if the passport authority is satisfied that the holder of the passport or travel document is in wrongful possession thereof;

(*b*) if the passport or travel document was obtained by the suppression of material information or on the basis of wrong information provided by the holder of the passport or travel document or any other person on his behalf:

[1][Provided that if the holder of such passport obtains another passport, the passport authority shall also impound or cause to be impounded or revoke such other passport.]

(*c*) if the passport authority deems it necessary so to do in the interests of the sovereignty and integrity of India, the security of India, friendly relations of India with any foreign country, or in the interests of the general public;

(d) if the holder of the passport or travel document has, at any time after the issue of the passport or travel document, been convicted by a court in India for any offence involving moral turpitude and sentenced in respect thereof to imprisonment for not less than two years;

(*e*) if proceedings in respect of an offence alleged to have been committed by the holder of the passport or travel document are pending before a criminal court in India;

(*f*) if any of the conditions of the passport or travel document has been contravened;

(*g*) if the holder of the passport or travel document has failed to comply with a notice under sub-section (*1*) requiring him to deliver up the same;

(*h*) if it is brought to the notice of the passport authority that a warrant or summons for the appearance, or a warrant for the arrest, of the holder of the passport or travel document has been issued by a court under any law for the time being in force or if an order prohibiting the departure from India of the holder of the passport or other travel document has been made by any such court and the passport authority is satisfied that a warrant or summons has been so issued or an order has been so made.

(*4*) The passport authority may also revoke a passport or travel document on the application of the holder thereof.

(*5*) Where the passport authority makes an order varying or cancelling the endorsements on, or varying the conditions of, a passport or travel document under sub-section (*1*) or an order impounding or revoking a passport or travel document under sub-section (*3*), it shall record in writing a brief statement of the reasons for making such order and furnish to the holder of the passport or travel document on

1. The proviso ins. by Act 35 of 1993, s. 4 (w.e.f. 1-7-1993).

demand a copy of the same unless in any case, the passport authority is of the opinion that it will not be in the interests of the sovereignty and integrity of India, the security of India, friendly relations of India with any foreign country or in the interests of the general public to furnish such a copy.

(*6*) The authority to whom the passport authority is subordinate may, by order in writing, impound or cause to be impounded or revoke a passport or travel document on any ground on which it may be impounded or revoked by the passport authority and the foregoing provisions of this section shall, as far as may be, apply in relation to the impounding or revocation of a passport or travel document by such authority.

(*7*) A court convicting the holder of a passport or travel document of any offence under this Act or the rules made thereunder may also revoke the passport or travel document:

Provided that if the conviction is set aside on appeal or otherwise the revocation shall become void.

(*8*) An order of revocation under sub-section (*7*) may also be made by an appellate court or by the High Court when exercising its powers of revision.

(*9*) On the revocation of a passport or travel document under this section the holder thereof shall, without delay, surrender the passport or travel document, if the same has not already been impounded, to the authority by whom it has been revoked or to such other authority as may be specified in this behalf in the order of revocation.

[1][**10A. Suspension of passports or travel documents in certain cases.—**(*1*) Without prejudice to the generality of the provisions contained in section 10, if the Central Government or any designated officer is satisfied that the passport or travel document is likely to be impounded or caused to be impounded or revoked under clause (*c*) of sub-section (*3*) of section 10 and it is necessary in the public interest so to do, it or he may,—

(*a*) by order, suspend, with immediate effect, any passport or travel document;

(*b*) pass such other appropriate order which may have the effect of rendering any passport or travel document invalid,

for a period not exceeding four weeks:

Provided that the Central Government or the designated officer may, if it or he considers appropriate, extend, by order and for reasons to be recorded in writing, the said period of four weeks till the proceedings relating to variation, impounding or revocation of passport or travel document under section 10 are concluded:

Provided further that every holder of the passport or travel document, in respect of whom an order under clause (*a*) or clause (*b*) of this sub-section had been passed, shall be given an opportunity of being heard within a period of not later than eight weeks reckoned from the date of passing of such order and thereupon the Central Government may, if necessary, by order in writing, modify or revoke the order passed under this sub-section.

(*2*) The designated officer shall immediately communicate the order passed under sub-section (*1*), to the concerned authority at an airport or any other point of embarkation or immigration, and to the passport authority.

(*3*) Every authority referred to in sub-section (*2*) shall, immediately on receipt of the order passed under sub-section (*1*), give effect to such order.

10B. Validation of intimations.—Every intimation given by the Central Government or the designated officer, before the commencement of the Passports (Amendment) Act, 2002 (17 of 2002), to any immigration authority at an airport or any other point of embarkation or immigration, restricting or in any manner prohibiting the departure from India of any holder of the passport or travel document under sub-section (*3*) of section 10, shall be deemed to be an order under sub-section (*1*) of section 10A and such order shall continue to be in force for a period of three months

1. Ins by Act 17 of 2002, s. 2 (w.e.f. 23-10-2002).

from the date of commencement of the Passports (Amendment) Act, 2002, or the date of giving such intimation, whichever is later.

Explanation.—For the purposes of sections 10A and 10B, the expression "designated officer" means such officer or authority designated, by order in writing, as such by the Central Government.]

11. Appeals.—(*1*) Any person aggrieved by an order of the passport authority under clause (*b*) or clause (*c*) of sub-section (*2*) of section 5 or clause (*b*) of the proviso to section 7 or sub-section (*1*), or sub-section (*3*) of section 10 or by an order under sub-section (*6*) of section 10 of the authority to whom the passport authority is subordinate, may prefer an appeal against that order to such authority (hereinafter referred to as the appellate authority) and within such period as may be prescribed:

Provided that no appeal shall lie against any order made by the Central Government.

(*2*) No appeal shall be admitted if it is preferred after the expiry of the period prescribed therefor:

Provided that an appeal may be admitted after the expiry of the period prescribed therefor if the appellant satisfied the appellate authority that he had sufficient cause for not preferring the appeal within that period.

(*3*) The period prescribed for an appeal shall be computed in accordance with the provisions of the Limitation Act, 1963 (36 of 1963), with respect to the computation of the periods of limitation thereunder.

(*4*) Every appeal under this section shall be made by a petition in writing and shall be accompanied by a copy of the statement of the reasons for the order appealed against where such copy has been furnished to the appellant and [1][by such fee as may be prescribed for meeting the expenses that may be incurred in calling for relevant records and for connected services].

(*5*) In disposing of an appeal, the appellate authority shall follow such procedure as may be prescribed:

Provided that no appeal shall be disposed of unless the appellant has been given a reasonable opportunity or representing his case.

(*6*) Every order of the appellate authority confirming, modifying or reversing the order appealed against shall be final.

12. Offences and penalties.—(*1*) Whoever—

(*a*) contravenes the provisions of section 3; or

(*b*) knowingly furnishes any false information or suppresses any material information with a view to obtaining a passport or travel document under this Act or without lawful authority alters or attempts to alter or causes to alter the entries made in a passport or travel document; or

(*c*) fails to produce for inspection his passport or travel document (whether issued under this Act or not) when called upon to do so by the prescribed authority; or

(*d*) knowingly uses a passport or travel document issued to another person; or

(*e*) knowingly allows another person to use a passport or travel document issued to him,

shall be punishable with imprisonment for a term which may extend to [2][two years or with fine which may extend to five thousand rupees] or with both.

1. Subs. by Act 35 of 1993, s. 5, for "by such fee (if any) not exceeding rupees twenty-five as may be prescribed" (w.e.f. 1-7-1993).
2. Subs. by s. 6, *ibid*., for "six months or with fine which may extend to two thousand rupees" (w.e.f. 1-7-1993).

[1] [(*1A*) Whoever, not being a citizen of India,—

(*a*) makes an application for a passport or obtains a passport by suppressing information about his nationality, or

(*b*) holds a forged passport or any travel document,

shall be punishable with imprisonment for a term which shall not be less than one year but which may extend to five years and with fine which shall not be less than ten thousand rupees but which may extend to fifty thousand rupees.]

(*2*) Whoever abets any offence punishable under [2][sub-section (*1*) or sub-section (*1A*)] shall, if the act abetted is committed in consequence of the abetment, be punishable with the punishment provided in that sub-section for that offence.

(*3*) Whoever contravenes any condition of a passport or travel document or any provision of this Act or any rule made thereunder for which no punishment is provided elsewhere in this Act shall be punishable with imprisonment for a term which may extend to three months or with fine which may extend to five hundred rupees or with both.

(*4*) Whoever, having been convicted of an offence under this Act, is again convicted of an offence under this Act shall be punishable with double the penalty provided for the latter offence.

13. Power to arrest.—(*1*) Any officer of customs empowered by a general or special order of the Central Government in this behalf and any [3][officer of police or emigration officer] not below the rank of a sub-inspector may arrest without warrant any person against whom a reasonable suspicion exists that he has committed any offence punishable under section 12 and shall, as soon as may be, inform him of the grounds for such arrest.

(*2*) Every officer making an arrest under this section shall, without unnecessary delay, take or send the person arrested before a magistrate having jurisdiction in the case or to the officer in charge of the nearest police station and the provisions of [4][section 57 of the Code of Criminal procedure, 1973 (2 of 1974)] shall, so far as may be, apply in the case of any such arrest.

14. Power of search and seizure.—(*1*) Any officer of customs empowered by a general or special order of the Central Government in this behalf and any [3][officer of police or emigration officer] not below the rank of a sub-inspector may search any place and seize any passport or travel document from any person against whom a reasonable suspicion exists that he has committed any offence punishable under section 12.

(*2*) The provisions of the [5][Code of Criminal Procedure, 1973 (2 of 1974)], relating to searches and seizures shall, so far as may be, apply to searches and seizures under this section.

15. Previous sanction of Central Government necessary.—No prosecution shall be instituted against any person in respect of any offence under this Act without the previous sanction of the Central Government or such officer or authority as may be authorised by that Government by order in writing in this behalf.

16. Protection of action taken in good faith.—No suit, prosecution or other legal proceeding shall lie against the Government or any officer or authority for anything which is in good faith done or intended to be done under this Act.

17. Passports and travel documents to be property of Central Government.—A passport or travel document issued under this Act shall at all times remain the property of the Central Government.

18. [Passports, etc., not to be issued to persons who cannot emigrate under Act 7 of 1922].—*Omitted by the Passports* (*Amendment*) *Act*, 1993 (35 *of* 1993), *s*. 8 (*w.e.f*. 1-7-1993).

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1. Ins. by Act 35 of 1993 s. 6, (w.e.f. 1-7-1993).
2. Subs. by s. 6, *ibid.*, for "sub-section (*1*)" (w.e.f. 1-7-1993).
3. Subs. by s. 7, *ibid.*, for "Officer of police" (w.e.f. 1-7-1993).
4. Subs. by Act 31 of 1978, s. 3, for "section 61 of the Code of Criminal Procedure, 1898 (5 of 1898)" (w.e.f. 18-8-1978).
5. Subs. by s. 4, *ibid.*, for "Code of Criminal Procedure, 1898 (5 of 1898)" (w.e.f. 18-8-1978).

19. Passports and travel documents to be invalid for travel to certain countries.—Upon the issue of a notification by the Central Government that a foreign country is—

(*a*) a country which is committing external aggression against India; or

(*b*) a country assisting the country committing external aggression against India; or

(*c*) a country where armed hostilities are in progress; or

(*d*) a country to which travel must be restricted in the public interest because such travel would seriously impair the conduct of foreign affairs of the Government of India,

a passport or travel document for travel through or visiting such country shall cease to be valid for such travel or visit unless in any case a special endorsement in that behalf is made in the prescribed form by the prescribed authority.

20. Issue of passports and travel documents to persons who are not citizens of India.—Notwithstanding anything contained in the foregoing provisions relating to issue of a passport or travel document, the Central Government may issue, or cause to be issued, a passport or travel document to a person who is not a citizen of India if that Government is of the opinion that it is necessary so to do in the public interest.

21. Power to delegate.—The Central Government may, by notification in the Official Gazette, direct that any power or function which may be exercised or performed by it under this Act other than the power under clause (*d*) of sub-section (*1*) of section 6 or the power under clause (*i*) of sub-section (*2*) of that section or the power under section 24, may, in relation to such matters and subject to such conditions, if any, as it may specify in the notification, be exercised or performed—

(*a*) by such officer or authority subordinate to the Central Government; or

(*b*) by any State Government or by any officer or authority subordinate to such Government; or

(*c*) in any foreign country in which there is no diplomatic mission of India, by such foreign Consular Officer; as may be specified in the notification.

22. Power to exempt.—Where the Central Government is of the opinion that it is necessary or expedient in the public interest so to do, it may, by notification in the Official Gazette and subject to such conditions, if any, as it may specify in the notification,—

(*a*) exempt any person or class of persons from the operation of all or any of the provisions of this Act or the rules made thereunder; and

(*b*) as often as may be, cancel any such notification and again subject, by a like notification, the person or class of persons to the operation of such provisions.

23. Act to be in addition to certain enactments.—The provisions of this Act shall be in addition to and not in derogation of the provisions of the Passport (Entry into India) Act, 1920 (34 of 1920), [1][the Emigration Act, 1983 (31 of 1983)] the Registration of Foreigners Act, 1939 (16 of 1939), the Foreigners Act, 1946 (31 of 1946), [2]***, Trading with the Enemy (Continuance of Emergency Provisions) (16 of 1947), the Foreigners Law (Application and Amendment) Act, 1962 (42 of 1962), [3][the Foreign Exchange Regulation Act, 1973 (46 of 1973)] and other enactments relating to foreigners and foreign exchange.

24. Power to make rules.—(*1*) The Central Government may, by notification in the Official Gazette, make rules for carrying out the purposes of this Act.

1. Subs. by Act 35 of 1993, s. 9, for "the Emigration Act, 1922 (7 of 1922)" (w.e.f. 1-7-1993).
2. The words and figures "the Foreign Exchange Regulation Act, 1947 (7 of 1947)" omitted by Act 31 of 1978, s. 5 (w.e.f. 18-8-1978).
3. Ins. by Act 31 of 1978, s. 5, *ibid*. (w.e.f. 18-8-1978).

(*2*) In particular, and without prejudice to the generality of the foregoing power, such rules may provide for all or any of the following matters, namely:—

(*a*) the appointment, jurisdiction, control and functions of passport authorities;

(*b*) the classes of persons to whom passports and travel documents referred to respectively in sub-section (*1*) and sub-section (*2*) of section 4 may be issued;

(*c*) the form and particulars of application for the issue or renewal of a passport or travel document or for endorsement on a passport or travel document and where the application is for the renewal, the time within which it shall be made;

(*d*) the period for which passports and travel documents shall continue in force;

(*e*) the form in which and the conditions subject to which the different classes of passports and travel documents may be issued, renewed or varied;

[1][(*ee*) specifying the foreign country for the purposes of the *Explanation* to sub-section (*1*) of section 5;]

(*f*) the fees payable in respect of [2][any application for the issue of a passport under sub-section (*1*) of section 5 or issue of a passport for visiting a foreign country referred to in sub-section (*1A*) of section 5] or travel document or for varying any endorsement or making a fresh endorsement on a passport or a travel document and the fees payable in respect of any appeal under this Act;

(*g*) the appointment of appellate authorities under sub-section (*1*) of section 11, the jurisdiction of, and the procedure which may be followed by, such appellate authorities;

(*h*) the services (including the issue of a duplicate passport or travel document in lieu of a passport or travel document lost, damaged or destroyed) which may be rendered in relation to a passport or travel document and the fees therefor;

(*i*) any other matter which is to be or may be prescribed or in respect of which this Act makes no provision or makes insufficient provision and provision is, in the opinion of the Central Government, necessary for the proper implementation of the Act.

(*3*) Every rule made under this Act shall be laid as soon as may be after it is made, before each House of Parliament while it is in session for a total period of thirty days which may be comprised in one session or [3][in two or more successive sessions and if, before the expiry of the session immediately following the session or the successive sessions aforesaid], both Houses agree in making any modification in the rule or both Houses agree that the rule should not be made, the rule shall thereafter have effect only in such modified form or be of no effect, as the case may be; so, however, that any such modification or annulment shall be without prejudice to the validity of anything previously done under that rule.

25. Change of short title of Act 34 of 1920.—In the Indian Passport Act, 1920, in sub-section (*1*) of section 1, for the words and figures "the Indian Passport Act, 1920," the words, brackets and figures "the Passport (Entry into India) Act, 1920" shall be substituted.

26. [Saving as to certain passports and applications.]—*Omitted by the Passports* (*Amendment*) *Act*, 1993 (35 *of* 1993), *s*. 8 (*w.e.f.* 1-7-1993).

27. Repeal and saving.—(*1*) The Passports Ordinance, 1967 (4 of 1967) is hereby repealed.

(*2*) Notwithstanding such repeal, anything done or any action taken or purporting to have been done or taken under the said Ordinance shall be deemed to have been done or taken under this Act as if this Act had commenced on the 5th day of May, 1967.

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1. Ins. by Act 31 of 1978, s. 6 (w.e.f. 18-8-1978).
2. The words "issue or renewal of a passport" of clause (*f*) were subs. by Act 31 of 1978, s. 6 (w.e.f.18-8-1978) to read as "issue or renewal of a passport for visiting a foreign country referred to in sub-section (*1A*) of section 5"and the words "any application for the issue or renewal of a passport" were further subs. by Act 35 of 1993, s.10 to read as above (w.e.f.1-7-1993).
3. Subs. by Act 31 of 1978, s. 6, for certain words (w.e.f. 18-8-1978).